Questions to Ask an Elder Law Attorney When Mom Needs Care Now

And the ones that belong to someone else. Fifteen questions, sorted by who can answer them, with room to write what they say.

Time with an attorney goes quickly, and the questions in your head are in no particular order. Bring them written down, ask them as they are, and write the answer under each one.

This guide doesn't answer the questions and doesn't say which matters most. The answers depend on Mom's papers and on your state, and the people below are the ones who can give them.

An elder law attorney

The person who reviews questions of authority, ownership, trusts and transfers, and gives legal advice before anything with legal consequences is done.

1. Here are the documents we've found and who each one names to act for Mom. Can you confirm who is able to act for her, and for what?

2. Does her existing power of attorney or trust allow us to do what needs to be done, including what a Medicaid plan may call for?

3. Here is what we've noticed about how Mom is handling decisions. What does that mean for anything she may be asked to sign or change?

4. Is there anything in her healthcare documents or her will that you'd want to look at now?

5. Here is how the deed says the home is owned. What should we understand before anything about the house or other assets is transferred or retitled?

6. Here are the gifts, transfers and ownership changes already made, with dates. Which of them do you need to look at?

7. What should we understand about estate recovery in our state?

8. If Mom is married: what legal questions does that raise for her spouse?

9. Do any beneficiary or estate-planning arrangements need a look as part of this?

10. Which of the decisions in front of us need your advice before anyone acts, and how should we keep a record of what you recommend?

Your Medicaid planner

The person who helps your family identify the legal issues that could affect the Medicaid plan and organize the facts and documents for the attorney. Legal advice belongs to an elder law attorney.

1. Which of our questions need an elder law attorney, and which can you help us organize?

2. What facts and documents should we have in order before the attorney reviews them?

3. Once the attorney has made recommendations, how do they become part of Mom's overall plan?

Your own family

Brothers, sisters and anyone who has helped with Mom's papers or her bills. Mom herself, wherever she can take part.

1. Who has which of Mom's papers, and is there one we've heard about that nobody has seen?

2. Has anything of Mom's been given away, transferred or put in someone else's name, and roughly when?

What this guide doesn't do

It doesn't answer these questions, put them in order of importance, or say what any answer means for Mom. Rules vary by state, and the legal answers come from an elder law attorney. Nothing here is legal, financial or tax advice.

Ready for the next step?

Your questions are written down and sorted by who can answer them. While the answers come in, the planning interview asks about your family's situation and gives you a free planning report you can bring to the attorney and to your Medicaid planner.

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